MUSUNGWINI ENOCK
versus
MUFARA IVY NDAKARWIRWA

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 15,18 & 23 June, & 9 July 2026

Matrimonial Summons

F Mubangwa, for plaintiff
TM Kanengoni, for defendant

TSANGA J:

Introduction

This is a divorce action. The parties initially contracted a customary marriage in 2014 before solemnising their union in terms of the then Marriage Act [*Chapter 5:11*] in 2018. Two children were born of the marriage, one in 2014 and the other in 2018. The parties are agreed that custody of the minor children should be awarded to the defendant. There is also an existing maintenance order from the Magistrates' Court for the children although the defendant would like more.

The principal dispute concerns the defendant's entitlement, if any, to a share of an immovable property. In 2015, while the parties were still customarily married, the plaintiff acquired a residential stand known as Stand 3612 Fidelity Park, Southview, Harare. The stand was subsequently developed through the construction of a dwelling house. The division of this property constitutes the main issue in dispute. The plaintiff contends that the defendant is entitled only to 30% of the instalments paid towards the property up to the time of the parties' separation in 2020.

Issues referred to trial

The issues referred to trial were the following:

1.1 Whether Stand 3612 Fidelity Park, Southview, Harare was purchased and developed during the subsistence of the marriage.

1.2 Whether the defendant made any direct contributions towards the purchase or development of Stand 3612 Fidelity Park, Southview, Harare and, if so, the extent of such contributions.

1.3 Whether the defendant is entitled to a share in Stand 3612 Fidelity Park, Southview, Harare and, if so, the extent of that share.

1.4 Whether the defendant is entitled to a share in any assets acquired, or improvements made, during the parties' separation.

1.5 Whether the defendant should be permitted to continue occupying the immovable property together with the minor children until the youngest child attains the age of eighteen years or becomes self-supporting, whichever occurs first.

1.6 Whether the defendant is entitled to maintenance from the plaintiff in her personal capacity and in respect of the minor children and, if so, the amount thereof.

1.7 Whether the Mazda Tribute motor vehicle, registration number ADE 0509, should be sold and the proceeds thereof shared equally between the parties.

The Plaintiff's Evidence

The Plaintiff's evidence was that although the parties married in 2018 and had two minor children, the major matrimonial assets were acquired largely through his sole financial efforts. He testified that he purchased Stand 3612 Fidelity Southview Park in his name in November 2015, before the marriage, and personally met all the instalment payments for the property. By the time the parties separated in May 2020, he had already paid US$10,904.27 towards the purchase price, and after the separation he alone settled the remaining balance of US$8,415. 23. He further stated that construction of the house only commenced in September 2021, more than a year after the parties had separated, and that he financed the building almost entirely on his own until he roofed the structure. According to him, only minor

finishing works such as windows, doors, plumbing and floor tiles remained. He estimated the cost of construction to be between US$35 000.00 toUS$45 000.00.

The Plaintiff contended that the Defendant only moved into the incomplete house in December 2023 after she had been served with divorce summons and without his consent. He argued that the Defendant merely carried out minimal finishing works to make the house habitable and therefore should not claim a substantial interest in the property. He also maintained that while living in the house the Defendant enjoyed free accommodation and had therefore saved a lot in that regard as she was already receiving US$400.00 per month in maintenance, which was intended to cover rent, school fees and food.

Overall, he maintained that the Defendant made no meaningful financial contribution towards either the acquisition of the stand or the construction of the house and therefore was not entitled to an equal or majority share of the matrimonial estate. As regards maintenance, he emphasised that he has two other children who also need his assistance. Regarding the Mazda Tribute motor vehicle, the Plaintiff asserted that he had purchased it before the marriage and that it should not be regarded as a jointly acquired matrimonial asset.

In cross-examination he admitted that during the time he was studying overseas for two years, it was the defendant who had remained taking care of the children. He also admitted that she had put in doors, tiles, and ceiling to the structure he had constructed.

Defendant's Evidence

The Defendant accepted that the marriage had irretrievably broken down but argued that the matrimonial assets resulted from the joint efforts of both spouses through both direct and indirect contributions. She testified that when the parties married she was undertaking teaching practice and earned between US$300 and US$400 per month, which she contributed towards the family's household expenses. After qualifying as a teacher, she continued working throughout the marriage, using her income to support the household, maintain the family, and care not only for the parties' two children but also the Plaintiff's daughter from a previous relationship and her own son from a previous relationship.

She disputed the Plaintiff's claim that he alone acquired the matrimonial property, explaining that the idea of purchasing a family home was a joint decision. The parties viewed several properties together before selecting Stand 3612 Fidelity Southview Park. Although the Plaintiff financed much of the construction, she argued that her assumption of

responsibility for household expenses and childcare enabled him to direct his earnings towards paying for the stand and constructing the house.

The Defendant also testified that following an incident of domestic violence in 2020, the Plaintiff left the family home and ceased supporting the household, forcing her to become the de facto sole caregiver for the children. She explained that she bore responsibility for their daily needs, including education, healthcare and accommodation, and eventually obtained a maintenance order because the Plaintiff had failed to provide adequate support. Even after obtaining the maintenance order, she claimed that the Plaintiff frequently defaulted or paid late. Financial pressures eventually compelled her to move with the children into the unfinished house in 2023, where she completed the remaining works, including installing windows, doors, plumbing, electrical fittings, ceilings and other finishes, arguing that these finishing works represented a significant financial contribution to the property's value.

The Defendant further highlighted her ongoing responsibilities, including paying household expenses, maintaining a funeral policy covering the extended family, providing medical aid for the children through her employment, and caring for the family while the Plaintiff pursued postgraduate studies in the United Kingdom. She argued that these indirect contributions, together with the duration of the parties' 12-year relationship (which includes the years they were customarily married), and her role as sole custodian of the children since 2020, entitled her to an equal or greater share of the matrimonial estate.

In cross-examination. She highlighted that the funds for improving the house had come from different sources at various times and included getting a loan, using money from club rounds, contributions from her mother in Netherlands as well as from her late brother in law. Although in her evidence she initially expressed a preference for a 70:30 division in her favour, she accepted that a 50:50 division as in her plea would be fair, provided she and the children could remain in the matrimonial home until the youngest child reached the age of 18 or became self-supporting.

The law

The applicable legal principles are well settled. Section 7 of the Matrimonial Causes Act confers upon the court a wide discretion to make such order regarding the distribution of matrimonial assets as it considers just and equitable, having regard to all the circumstances of the case. In exercising that discretion, the court must consider, among other matters, the

income-earning capacities and financial resources of the parties, their direct and indirect contributions to the family and to the acquisition or improvement of matrimonial assets, the duration of the marriage, the responsibilities each party has undertaken for the welfare of the family, and the needs of any minor children. The section does not elevate direct financial contributions above non-financial contributions. Rather, it recognises marriage as an economic partnership in which each spouse contributes in different but equally valuable ways. Case law has elucidated these principles. In ***Ncube* v *Ncube* 1993 (1) ZLR 39 (S)**, the Supreme Court described s7 as providing broad guidelines for achieving fairness rather than rigid rules governing proprietary rights. The Court observed that determining each spouse's entitlement frequently involves considerations that are not susceptible to precise financial measurement, thereby necessitating the exercise of the court's broad equitable discretion.

In ***Shenje* v *Shenje* 2001 (2) ZLR 180 (H)**, GILLESPIE J clarified that while contributions made by each spouse remain relevant, they are only one of several statutory considerations. The judgment emphasised that the legislative intent underlying s 7 is directed more towards meeting the present and future needs of the parties than merely reimbursing their respective contributions. The court further recognised that both financial and non-financial contributions including domestic work, child care, emotional support and the creation of a stable home environment are equally deserving of recognition despite their inability to be quantified in monetary terms.

In ***Gonye* v *Gonye* SC 15-09**, the Supreme Court held that the Act deliberately refers to the "assets of the spouses" rather than "matrimonial property." Consequently, the court's jurisdiction extends to all assets owned by either or both spouses at the time of dissolution, irrespective of whether such assets were acquired before the marriage, during the marriage, or after separation, unless specifically excluded by statute. The Court further held that excluding assets merely because they were acquired during separation would improperly fetter the wide discretion conferred by s 7. The court must instead consider all the circumstances in pursuit of an equitable outcome.

Factual Analysis

The Plaintiff's reliance on the fact that the stand was acquired before the marriage cannot, without more, exempt it from distribution. The law is now settled that property acquired before marriage is not automatically excluded from redistribution where, during the

subsistence of the marriage, it became part of the matrimonial estate and the other spouse contributed, directly or indirectly, towards its preservation, improvement or enhancement. Equally, the fact that construction continued after the parties had separated does not remove the property from the court's jurisdiction. The marriage had not yet been dissolved, and the Defendant continued to discharge family responsibilities during that period, responsibilities that enabled the Plaintiff to devote his resources towards the development of the property.

The Court is satisfied that improvements effected to matrimonial property by one spouse after the parties have separated, but before the marriage has been dissolved by a decree of divorce, do not thereby cease to form part of the matrimonial estate. Separation, without more, does not terminate the legal relationship of marriage or extinguish the parties' respective proprietary interests arising during its subsistence. Until the marriage is legally dissolved, the matrimonial estate remains subject to the Court's jurisdiction, and any enhancement in the value of matrimonial property through financial expenditure, labour, or other contributions made by either spouse is properly taken into account in determining a just and equitable distribution. To hold otherwise would permit the timing of the dissolution proceedings, rather than the parties' legal rights and contributions, to determine the composition of the matrimonial estate.

The evidence demonstrates that while the Plaintiff made the greater direct financial contribution towards the acquisition of the stand and construction of the superstructure, the Defendant has made substantial indirect contributions that cannot be ignored. She maintained the household, utilised her earnings to meet family expenses, cared for the parties' children throughout the marriage, assumed sole responsibility for their upbringing after the Plaintiff left the matrimonial home, and completed the remaining works necessary to make the house habitable. These contributions materially enhanced the value of the matrimonial estate and enabled the Plaintiff to pursue his employment and further academic studies. He went to the United Kingdom for a two-year period during which time she was the sole parent responsible for the day-to-day care of the children. To regard such contributions as inferior merely because they are not readily quantifiable in monetary terms would be contrary to both the letter and spirit of section 7.

Having considered the evidence as a whole, the duration of the marriage, the respective direct and indirect contributions of the parties, the welfare of the minor children and the overarching objective of achieving a just and equitable outcome, this court is satisfied that neither party should receive a disproportionate share of the matrimonial estate. Although

the Plaintiff made greater financial contributions, the Defendant's extensive indirect contributions and assumption of primary parental responsibilities justify equal recognition. Equality in this case is not based upon mathematical equivalence of financial input but upon the totality of each spouse's contribution to the marriage and the accumulation of the matrimonial estate.

The welfare of the parties' two minor children also weighs heavily in the court's determination. The Defendant has been the children's primary caregiver since 2020 and, by agreement between the parties, will continue to exercise custody. Stability of accommodation is an important consideration in safeguarding their welfare. It would therefore not be in the children's best interests to require the immediate sale of the family home or to disrupt their residence therein. Their interests are best served by permitting them to continue residing in the property with the Defendant until the youngest child attains the age of eighteen years or becomes self-supporting, whichever occurs first.

The Court considers that postponing the sale of the matrimonial home may best serve the welfare and interests of the parties' children. The preservation of the family home affords children continuity, stability, and security at a time when the dissolution of their parents' marriage is itself a source of considerable disruption. Remaining in their familiar environment may minimize interruption to their education, social relationships, and emotional development. There are also difficulties in consistency in the payment of maintenance. The defendant’s own work as a primary school teacher does not yield much income. The plaintiff on the other hand has worked for international NGOs. He was also said to be intending to pursue a Ph.D. overseas. It is probably for this reason that the plaintiff has not addressed access rights to children though it is clear that there is consent that the custody of the children should be with their mother. It is vital that the children have a roof over their heads. The parties are differently situated. Where the circumstances so warrant as in this case, it is both just and equitable to defer the realization of the property until such time as the children's needs have been adequately safeguarded, while preserving the parties' respective proprietary interests for determination at the appropriate stage.

At the hearing the defendant did not pursue the issue of her own maintenance. What she sought was that the plaintiff be made to take responsibility for the fees and school uniforms. It was stated by the Plaintiff, which the defendant did not dispute at the hearing, that the current maintenance amount was granted on the basis that it included a rental component. It was also not disputed that plaintiff intends to pursue further studies. It was

equally not disputed that the plaintiff has other children of his own to look after. As the Defendant will continue residing in the home with the minor children and will therefore not incur rental expenses, there is no justification for increasing the overall maintenance payable by the Plaintiff at this point. Instead, the savings arising from the absence of rental expenditure should be directed towards meeting the children's needs such as school fees and school uniforms, and other reasonable school-related expenses as well as their clothing. This is bearing in mind that the defendant too has an obligation to contribute to the maintenance of the children even if financially in a small amount given her circumstances.

As regards the Mazda Tribute motor vehicle Reg No. ADE 0509, although the Plaintiff asserts that it was acquired before the marriage, the evidence establishes that it was utilised throughout the marriage as a family vehicle. In these circumstances, the vehicle similarly forms part of the matrimonial estate and should be sold and shared equally.

Accordingly, it is ordered that:

1. A decree of divorce be and is hereby granted.
2. Custody of the minor children namely Tadiwa Anesu Musungwini (born 14 December 2014 and Tanatswa Mary Musungwini (born 3 February 2018) is awarded to the defendant.
3. Stand No. 3612 Fidelity Southview Park, Harare, shall be shared equally between the Plaintiff and the Defendant in the ratio of fifty per cent (50%) each.
4. The Defendant and the parties' two minor children shall remain in occupation of the property until the youngest child attains the age of eighteen (18) years or becomes self-supporting, whichever occurs first.
5. Upon the occurrence of either event referred to in paragraph 2 above, either party shall have the first option to purchase the other's fifty per cent (50%) share in the property at a value agreed between the parties or, failing such agreement, at the market value determined by an independent registered valuer appointed by agreement between the parties. Should the parties fail to agree on the appointment of a valuer within fourteen (14) days of either party calling upon the other to do so, the Registrar of the High Court shall, upon the request of either party, appoint an independent registered valuer whose valuation shall be final and binding for the purposes of determining the purchase price.
6. In the event that neither party elects to purchase the other's share, or the purchasing party fails to complete the purchase within sixty (60) days of the valuation or within such further period as the parties may agree in writing, the property shall be sold on the open market and the net proceeds of the sale shall be divided equally between the Plaintiff and the Defendant.

7. Should either party refuse or fail to sign any agreement of sale, deed of transfer or any other document necessary to give effect to the valuation, purchase, sale or transfer of the property in terms of this order, the Sheriff of the High Court shall be authorised to sign such document or documents on behalf of the defaulting party, and such signature shall be as valid and effective as if executed by that party.
8. The Mazda Tribute motor vehicle, Registration Number ADE 0509, shall be sold and the net proceeds divided equally between the parties. Alternatively, either party may purchase the other's fifty per cent (50%) interest at a value agreed upon by the parties or, failing agreement, as determined by an independent valuer.
9. The Plaintiff shall continue to pay maintenance for the minor children in accordance with the existing maintenance order from the magistrate under Case No M1058/23 subject to variation under appropriate circumstances, until each child attains the age of eighteen (18) years or becomes self-supporting, whichever occurs first.
10. Each party shall bear his or her own costs.

TSANGA J:……

Mubangwa & Partners: Plaintiff's Legal Practitioners
Nyika & Kanengoni: Defendant's Legal Practitioners